Mutual Non-Disclosure Agreement

VENDOR DRAFT – NOT YET SIGNED – FOR DISCUSSION PURPOSES ONLY

This Mutual Non-Disclosure Agreement (this "**Agreement**") is entered into as of November 17, 2026 (the "**Effective Date**") by and between **Arcadia Retail Inc.**, a retailer with its headquarters in the United States ("**Customer**"), and **Pinecrest Advisory LLP** ("**Supplier**"). Customer and Supplier are each a "**Party**" and together the "**Parties**."

Recitals

WHEREAS, Customer operates a retail business and wishes to engage Supplier, or to evaluate engaging Supplier, to provide information technology advisory and related services;

WHEREAS, in connection with that engagement or evaluation, each Party may disclose to the other certain confidential, proprietary, or non-public information; and

WHEREAS, the Parties wish to set out the terms on which such information will be disclosed, used, and protected.

NOW, THEREFORE, in consideration of the mutual covenants in this Agreement and other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows:

Section 1. Definitions

1.1 "**Confidential Information**" means all non-public information, in any form or medium, disclosed by or on behalf of a Party (the "**Disclosing Party**") to the other Party (the "**Receiving Party**") in connection with the Purpose, whether before, on, or after the Effective Date, that is marked or identified as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure. Confidential Information includes business plans, pricing, customer and supplier information, store and sales data, systems architecture, source code, security information, and Personal Data.

1.2 "**Personal Data**" means any information relating to an identified or identifiable natural person that is disclosed under this Agreement.

1.3 "**Purpose**" means evaluating, negotiating, and, if the Parties so agree, performing a commercial relationship for IT advisory and related services between the Parties.

1.4 "**Representatives**" means a Party's affiliates and its and their directors, officers, partners, employees, contractors, professional advisers, and agents who need to know Confidential Information for the Purpose.

Section 2. Term

2.1 This Agreement commences on the Effective Date and continues until November 17, 2031, being an initial term of sixty (60) months, unless terminated earlier under Section 11 (the "**Term**").

2.2 Any extension of the Term must be agreed in writing and signed by both Parties.

Section 3. Scope and Services

3.1 This Agreement governs the exchange of Confidential Information for the Purpose. It does not obligate either Party to disclose any particular information or to enter into any further transaction.

3.2 If the Parties agree that Supplier will provide services to Customer, those services will be set out in a separate written agreement or statement of work signed by both Parties. Any such document will be subject to this Agreement as to confidentiality unless it expressly provides otherwise.

Section 4. Fees and Invoicing

4.1 No fees are payable by either Party for the disclosure or receipt of Confidential Information under this Agreement.

4.2 Each Party bears its own costs of performing this Agreement. Fees for any services will be agreed only in a separate signed written agreement, which will specify invoicing and payment terms.

Section 5. Confidentiality Obligations

5.1 The Receiving Party shall (a) use the Disclosing Party's Confidential Information solely for the Purpose; (b) not disclose it to any third party except to its Representatives who are bound by confidentiality obligations no less protective than those in this Agreement; and (c) protect it using at least the same degree of care it uses for its own confidential information of a similar nature, and no less than reasonable care.

5.2 The Receiving Party is responsible for any breach of this Agreement by its Representatives.

5.3 The obligations in this Section do not apply to information that the Receiving Party can demonstrate: (a) is or becomes publicly available other than through breach of this Agreement; (b) was lawfully known to it before disclosure; (c) is lawfully received from a third party without restriction; or (d) is independently developed without use of the Confidential Information.

5.4 The Receiving Party may disclose Confidential Information to the extent required by law, regulation, or court order, provided that, where lawful, it gives the Disclosing Party prompt written notice and reasonable cooperation so that the Disclosing Party may seek a protective order, and discloses only the portion legally required.

5.5 Upon written request or termination of this Agreement, the Receiving Party shall promptly return or destroy the Disclosing Party's Confidential Information and, on request, confirm in writing that it has done so, except that it may retain copies required by law or held in routine backup systems, which remain subject to this Agreement.

5.6 The obligations in this Section 5 shall survive for ten (10) years after this Agreement ends, whether by expiry or termination.

Section 6. Intellectual Property

6.1 As between the Parties, all Confidential Information and all intellectual property rights in it remain the property of the Disclosing Party. No license or other right is granted by this Agreement except the limited right to use Confidential Information for the Purpose.

6.2 Any feedback voluntarily provided by the Receiving Party about the Disclosing Party's products or services may be used by the Disclosing Party without obligation, provided that the Receiving Party's Confidential Information is not disclosed.

Section 7. Warranties

7.1 Each Party represents that it has the authority to enter into this Agreement and to make the disclosures contemplated by it.

7.2 EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS," AND THE DISCLOSING PARTY MAKES NO WARRANTY AS TO ITS ACCURACY, COMPLETENESS, OR FITNESS FOR ANY PARTICULAR PURPOSE.

Section 8. Limitation of Liability

8.1 To the maximum extent permitted by law, neither Party shall be liable to the other under this Agreement for any indirect, incidental, special, consequential, or punitive damages, or for loss of profits or revenue.

8.2 Nothing in this Agreement limits or excludes liability for breach of Section 5 or Section 6, for misappropriation of the other Party's Confidential Information, for fraud or willful misconduct, or for any liability that cannot be limited under applicable law.

Section 9. Indemnity

9.1 Each Party (the "**Indemnifying Party**") shall indemnify, defend, and hold harmless the other Party from and against third-party claims, and resulting losses, damages, and reasonable costs, to the extent arising from the Indemnifying Party's or its Representatives' unauthorized use or disclosure of the other Party's Confidential Information in breach of this Agreement.

9.2 The indemnified Party shall give prompt written notice of the claim, allow the Indemnifying Party to control the defense and settlement (provided no settlement may impose liability on the indemnified Party without its consent, not to be unreasonably withheld), and provide reasonable cooperation at the Indemnifying Party's expense.

Section 10. Data Protection

10.1 Each Party shall comply with all data protection and privacy laws applicable to its handling of Personal Data under this Agreement.

10.2 The Receiving Party shall process Personal Data only for the Purpose, implement appropriate technical and organizational security measures, and not transfer Personal Data to any third party except as permitted by this Agreement.

10.3 The Receiving Party shall notify the Disclosing Party without undue delay after becoming aware of any unauthorized access to, or loss or disclosure of, Personal Data or other Confidential Information, and shall cooperate reasonably in investigating and remediating it.

Section 11. Termination

11.1 Either Party may terminate this Agreement for convenience by giving the other Party written notice.

11.2 Either Party may terminate this Agreement immediately by written notice if the other Party materially breaches it and, where the breach is capable of remedy, fails to remedy it within a reasonable period after written notice.

11.3 Termination or expiry does not affect accrued rights or remedies. Sections 1, 5 through 10, 12, 13, and 14 survive termination or expiry in accordance with their terms.

Section 12. Governing Law and Disputes

12.1 This Agreement and any dispute arising out of or relating to it are governed by the laws of Ohio, without regard to its conflict-of-laws principles.

12.2 The Parties shall first attempt in good faith to resolve any dispute through discussions between senior representatives. Subject to that, the state and federal courts located in Ohio have exclusive jurisdiction, and each Party submits to their jurisdiction.

12.3 Each Party acknowledges that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which damages are an inadequate remedy, and that the Disclosing Party may seek injunctive or other equitable relief without proof of actual damages.

Section 13. Notices and Assignment

13.1 Notices under this Agreement must be in writing and delivered by hand, nationally recognized courier, or registered mail to the address a Party has notified to the other in writing, with a copy by email where an email address has been provided. Notices are effective upon receipt.

13.2 Neither Party may assign or transfer this Agreement, in whole or in part, without the other Party’s prior written consent, not to be unreasonably withheld, except to a successor to all or substantially all of its business or assets that assumes this Agreement in writing.

Section 14. Miscellaneous

14.1 **Entire Agreement.** This Agreement is the entire agreement between the Parties on its subject matter and supersedes all prior discussions and understandings concerning it.

14.2 **Amendment and Waiver.** This Agreement may be amended only by a writing signed by both Parties. A failure or delay in exercising a right is not a waiver of it.

14.3 **Severability.** If any provision is held unenforceable, it will be enforced to the maximum extent permissible and the remaining provisions will continue in effect.

14.4 **Relationship.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship.

14.5 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and all of which together are one instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their authorized representatives. *This draft has not been signed by either Party.*

ARCADIA RETAIL INC.	**PINECREST ADVISORY LLP**
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____